

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Curmi	Team: Team # 5	CCRB Case #: 201012202	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/05/2010 11:00 PM	Location of Incident: Inside the 52nd Precinct Stationhouse	Precinct: 52	18 Mo. SOL 3/5/2012	EO SOL 3/5/2012	
Date/Time CV Reported Tue, 09/07/2010 11:27 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/07/2010 11:27 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Maurice Harrington	06286	934992	052 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Michael Vincenzi	05773	935934	052 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Maurice Harrington	Discourtesy: PO Maurice Harrington spoke obscenely and/or rudely to § 87(2)(b)				

Complaint Summary

On September 7, 2010, § 87(2)(b) called the CCRB to file a complaint. On September 5, 2010, at approximately 11:00 PM, § 87(2)(b) and Mrs. § 87(2)(b) went to the 52 Pct. to request documents from a car accident a month earlier from PO Michael Vincenzi. PO Vincenzi informed § 87(2)(b) that PO Maurice Harrington was the one who filed the report and that he would bring him to the front. PO Harrington proceeded to the front desk and after speaking with § 87(2)(b) he went to the back for a time and then returned, asking § 87(2)(b) for his license and registration. § 87(2)(b) told PO Harrington that he did not have the documents with him. PO Harrington responded that he could not do anything about it then. § 87(2)(b) replied, “Well I need help,” to which PO Harrington responded, “oh well, that is not my fucking problem” (**Allegation A**). § 87(2)(b) told PO Harrington to not speak to him like that, and he responded, “You need to get your ass home, motherfucker” (**Allegation A**).

Mrs. § 87(2)(b) described PO Harrington as a black male, approximately 6’0.” Both § 87(2)(b) and § 87(2)(b) observed PO Harrington’s name on his badge. PO Vincenzi, who Mrs. § 87(2)(b) described as a white, skinny, male, almost 6’0,” informed § 87(2)(b) and Mrs. § 87(2)(b) that he was going to retrieve PO Harrington upon their entry into the 52 Pct. A search of CCRB case 200810117 in EDMS yielded a match for PO Harrington’s command and similar pedigree information.

On September 9, 2010, the investigator explained both mediation and investigation to Mrs. § 87(2)(b) in a phone conversation. Mrs. § 87(2)(b) asked her husband and he accepted. § 87(2)(b) seemed most concerned with PO Harrington’s behavior during the incident, and stated, that by mediating the complaint, PO Harrington would learn to be more responsible with documents and to be respectful to people who have not done anything wrong.

Results of preparing the case for mediation

On September 30, 2010, Tahira Delaine, in the Alternative Dispute Resolution (ADR) Unit, reviewed this case and put it into the mediation process. On the same date, Tahira Delaine contacted § 87(2)(b) to inform him that his case was being processed. At that time, § 87(2)(b) informed Tahira Delaine that he was no longer interested in proceeding with his case. Tahira Delaine informed § 87(2)(b) that his case would be closed.

§ 87(2)(b) added an updated copy of PO Harrington’s CCRB history to the case file. PO Harrington has not been named as a subject officer in any case since this case was filed.

Recommendation

§ 87(2)(b), § 87(2)(g)

Mediation Supervisor:

Date:

Director of Mediation:

Date: